



DECISION

Complaint No. : POS/630/HYD/2024

Name and address of the complainant : Mr. Aijaz Hussain S/o Ameer Bux,
R/o Village Haji Khan Jaskani, P.O. Bulri Shah Karim
District Tando Muhammad Khan

Name of the Agency Complained against : Education Department, Badin

Name & Designation of Investigating Officer : Abdul Wahab Memon,
Regional Director, Badin

Vetted by : Fasihuddin Khan,
Advisor 'Z'

Subject : ALLEGED DELAY IN ALLOWING THE COMPLAINANT TO JOIN DUTY ON THE POST OF PST (BPS-14) AGAINST DISABLED QUOTA BY THE EDUCATION DEPARTMENT

COMPLAINT

Mr. Aijaz Hussain filed a complaint dated 27.09.2024 regarding delay in allowing him to join duty as primary school teacher (PST) (BPS-14) against the quota for disabled persons despite issuance of offer letter dated 23.05.2023 to him by the Education Department, Badin. Aggrieved by that, he approached this Institution for intervention.

PROCEEDINGS

2. The complaint was admitted u/s 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving mandatory Affidavit on Form 'A' and other relevant documents for investigation.

3. The matter was taken up with the Agency vide hearing notice dated 05.11.2024. The hearing was attended by the Law Officer and the Assistant Education Officer (Primary), Tando Muhammad Khan on 13.11.2024. They submitted the report of the DEO (Primary), T.M. Khan dated 12.11.2024 stating that the complainant applied against disabled quota, under the Teachers Recruitment Policy issued vide notification dated 08.12.2021 wherein the passing ratio for differently abled persons was reduced to 33% instead of 55% marks.

The petitioner obtained 33 marks in written test; therefore, he was issued an offer letter accordingly. Later on, the appointment of the candidate, who secured below 40 marks was challenged before the Hon'ble High Court of Sindh under petition

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(2)

The Section Officer, Regulation-II, Services General & Coordination Department communicated to the Secretary, School Education & literary Department the opinion of Law Department and Advocate General Sindh, Karachi in respect of Hon'ble Court's Judgement dated 12.01.2023 in CP No. D-297 of 2022 vide letter dated 16.09.2024. The operative para of the opinion is reproduced as under :

I have perused the file and it is advised to the Administrative Department that the Recruitment Policy, 2021 is challenged in CP No.D508/2023 and 509/2023 and the said matter is now part heard before the Division Bench comprising of Hon'ble Chief Justice of Sindh High Court at Principal Seat, Karachi for further arguments, therefore, after final adjudication of above CPs this office will be in better position to advise in respect of the above subject”

The report of the Agency was sent to the complainant vide letter dated 05.12.2024 for submission of rejoinder. He submitted his rejoinder dated 18.12.2024 disagreeing with the Agency.

FINDING

4. As discussed above, the matter being sub-judice before the Hon'ble High Court of Sindh further proceedings are not possible by this Institution u/s 9(1) of the Act 1991.

DECISION

5. In view of the above and in exercise of powers vested in me u/s 11 of Establishment of the Office of Ombudsman for Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of accordingly for want of jurisdiction.

Given under my hand and seal of Office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz - PAS
Ombudsman, Sindh

Karachi, dated

10~~th~~ November, 2025